

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

DELOR SCARBORO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
IBRAHIM ADAM, Shield No. 20396, SERGEANT GARY
VANZANTEN, Shield No. 7924, and POLICE OFFICERS
JOHN DOES #s 1-10 (names and numbers of whom are
unknown at present),

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident
Kings County as the place of
trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 17, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER IBRAHIM ADAM, Shield No. 20396, PSA2 Precinct, 560 Sutter
Ave, Brooklyn, New York 11207
SERGEANT GARY VANZANTEN, Shield No. 7924, PSA2 Precinct, 560 Sutter Ave,
Brooklyn, New York 11207

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

DELOR SCARBORO,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
IBRAHIM ADAM, Shield No. 20396, SERGEANT GARY
VANZANTEN, Shield No. 7924, and POLICE OFFICERS
JOHN DOES #s 1-10 (names and numbers of whom are
unknown at present),

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff DELOR SCARBORO, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 19, 2018 at 6:00 am plaintiff was lawfully sleeping inside of his mother's apartment located at 281 Dumont Avenue, Apt. 5E, Brooklyn, New York, 11212 because he traveled from his home in Georgia to visit his family and arrived in New York the night before. At approximately 6:00 am on May 19, 2018 the defendant police officers unlawfully and forcibly entered plaintiff's mother's apartment, woke plaintiff from his sleep unlawfully searched plaintiff, unlawfully searched the entire apartment, falsely arrested plaintiff, maliciously prosecuted plaintiff, subjected plaintiff to abuse of process, and denied plaintiff the right to due process/right to a fair trial, without probable cause or legal justification. The defendants lacked an objective factual basis to believe plaintiff committed a crime or violated the law. No drugs, weapons or contraband were recovered from the possession, custody or control of plaintiff. Additionally, at no point in time relevant herein did plaintiff violate the law, nor did the police officers have a reasonable factual basis to believe plaintiff violated the law in any way. Nevertheless, plaintiff was unlawfully arrested without probable cause or any legal justification and transported plaintiff to the PSA2 Precinct whereat plaintiff was unlawfully searched, strip searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. Plaintiff was then transported to the 74th Precinct whereat he was unlawfully interrogated by Detectives. Thereafter, plaintiff was transported to Kings County Central Booking whereat his detention continued until May 20,

2018, when plaintiff was arraigned in Brooklyn Criminal Court and charged with crimes he did not commit. The defendant officers provided the Brooklyn District Attorney's Office with false, misleading, and incomplete information about their basis for arresting plaintiff and charging him with crimes. On or about May 20, 2018, after plaintiff Delor Scarboro had been detained for approximately 24 hours he was arraigned in Brooklyn Criminal Court, charged with Felony crimes he did not commit and was released on his own recognizance. Thereafter, plaintiff testified for two days before a Grand Jury about what occurred, and the Grand Jury found that there was not probable cause to prosecute plaintiff and returned No True Bill on July 26, 2018. All criminal charges brought against plaintiff were dismissed and sealed in their entirety on or about July 26, 2018. At no point in time did plaintiff commit a crime or violate the law in any manner. The defendant police officers arrested and charged plaintiff with possession of a firearm because they could not locate the individual the firearm belonged to and they wanted to make a gun arrest, which is highly valued by the NYPD. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully frisked, searched, strip searched, confined, falsely arrested, maliciously prosecuted, abused process, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

1. Plaintiff Delor Scarboro is a resident of the state of Georgia.
2. Defendant POLICE OFFICER IBRAHIM ADAM, Shield No. 20396, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
3. Defendant POLICE OFFICER IBRAHIM ADAM, Shield No. 20396, is and was at all times relevant herein, assigned to the PSA2 Precinct.
4. Defendant POLICE OFFICER IBRAHIM ADAM, Shield No. 20396, is being sued in his individual and official capacity.
5. Defendant SERGEANT GARY VANZANTEN, Shield No. 7924, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
6. Defendant SERGEANT GARY VANZANTEN, Shield No. 7924, is and was at all times relevant herein, assigned to the PSA2 Precinct.
7. Defendant SERGEANT GARY VANZANTEN, Shield No. 7924, is being sued in his individual and official capacity.

8. Defendants New York City Police Officers John Does #s1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

9. Defendants New York City Police Officers John Does #s1-10 are being sued in their individual and official capacities.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and a Hearing pursuant to General Municipal Law Section 50-h was conducted by the City of New York on October 15, 2018.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. By way of background, the defendant police officers that arrested plaintiff on May 19, 2018 had been investigating plaintiff's brother, Elijah Scarboro for a period of time prior to May 19, 2018.

17. The defendants were able to obtain a search warrant to search plaintiff's mother's apartment located at 281 Dumont Avenue, apartment 5E, Brooklyn, New York based

upon information provided by a Confidential Informant that Elijah Scarboro lived at that location and possessed 1 silver semi-automatic weapon with a brown handle and ammunition at that location.

18. The search warrant used by defendants to gain entry into the location, named Elijah Scarboro as the target of the defendant's investigation and the search warrant.

19. Plaintiff was not named as a target or suspect on the warrant or on any of defendants' investigatory paperwork.

20. Plaintiff was living and working in Georgia for several months prior to May 19, 2018 and had Georgia Health Insurance through his employer.

21. Plaintiff returned to New York City from Georgia to visit his family on the night of May 18, 2018.

22. On the night of May 18, 2018 into the morning of May 19, 2018 plaintiff slept at his mother's house located at 281 Dumont Avenue, apartment 5E, Brooklyn, New York in the bedroom he previously occupied when he lived there.

23. At approximately 6:00 am on May 19, 2018 the defendant police officers executed a search warrant at 281 Dumont Avenue, apartment 5E, Brooklyn, New York.

24. Specifically, the police officers were searching for plaintiff's brother, Elijah Scarboro and for the silver semi-automatic weapon with a brown handle and ammunition that allegedly belonged to Elijah Scarboro.

25. When the defendant police officers raided the apartment, they woke plaintiff from his sleep by screaming profanities and pointing their weapons and flashlights in plaintiff's face.

26. The defendant police officers immediately proceeded to handcuff plaintiff and search his person.

27. The defendant police officers did not recover any illegal drugs, weapons or contraband from plaintiff's person.

28. The defendant police officers asked plaintiff and everyone else in the apartment where Elijah Scarboro was.

29. Elijah Scarboro was not home at the time the police executed the search warrant and nobody in the apartment was able to tell the defendant police officers where he was.

30. Plaintiff advised the police officers that he no longer lived in the apartment and was living and working in Georgia.

31. Plaintiff advised the defendant police officers that he was visiting his family and arrived in New York City and at the apartment the previous night on May 18, 2019.

32. The police officers knew plaintiff because they previously arrested him for allegedly possessing a marijuana cigarette.

33. The defendant police officers told plaintiff that they would not arrest him if he told them where his brother Elijah Scarboro was.

34. However, plaintiff had not seen or spoken to Elijah Scarboro since he returned to New York City the night before and he had no idea where Elijah Scarboro was.

35. Plaintiff told the defendant police officers that he was not able to help them locate Elijah Scarboro.

36. The defendant police officers proceeded to search the entire apartment.

37. At no time relevant herein did the defendant police officers recover any illegal drugs, weapons or contraband from the possession, custody or control of plaintiff.

38. Nevertheless, the defendant police officers falsely arrested plaintiff, without probable cause or legal justification and transported him to the PSA2 Precinct against his will.

39. The defendant police officers unlawfully searched, fingerprinted and photographed plaintiff at the PSA2 Precinct.

40. Additionally, the defendant police officers strip searched plaintiff, without probable cause or legal justification, by ordering Mr. Scarboro to remove his pants, to squat and cough.

41. At no time relevant herein did the defendant police officers recover any drugs, weapons or contraband from plaintiff's possession, custody or control.

42. Thereafter, plaintiff was transported to the 74th Precinct whereat he was unlawfully interrogated by Detectives.

43. The Detectives at the 74th Precinct advised plaintiff that they recovered the firearm they were searching for from his brother Elijah's bedroom and that plaintiff would be charged with possession of the firearm unless he informed the Detectives about where they could locate Elijah Scarboro.

44. However, plaintiff Delor Scarboro did not know anything about a gun in the apartment and he had absolutely no idea where Elijah Scarboro was.

45. Therefore, plaintiff was unable to provide the Detectives with the information they were seeking.

46. Since the defendant police officers were unable to locate Elijah Scarboro, they charged plaintiff with possession of the firearm they allegedly recovered from the apartment.

47. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued until May 20, 2018, when plaintiff was arraigned in Brooklyn Criminal Court and charged with felony crimes he did not commit.

48. The defendant police officers provided the Brooklyn District Attorney's Office with false, misleading, and incomplete information about their basis for arresting plaintiff and charging him with crimes.

49. Specifically, although the defendant police officers allegedly recovered the firearm from Elijah Scarboro's bedroom, the police officers falsely alleged that they recovered the firearm from a shoebox under a bed in the bedroom they believed was plaintiff's bedroom.

50. Furthermore, the defendant police officers did not advise the District Attorney's Office that plaintiff no longer lived in the apartment, arrived the night before to visit his family, and presently lived and worked in Georgia.

51. Based upon the false allegations made against plaintiff by the defendant police officers, at arraignment plaintiff was wrongfully charged with Criminal Possession of a Firearm (PL 265.01-8(1)) and Criminal Possession of a Weapon in the Fourth Degree (PL 265.01(1)).

52. Plaintiff was arraigned on May 20, 2018, approximately 24 hours after plaintiff was arrested by the defendants.

53. Plaintiff was charged with Felony crimes he did not commit and was released on his own recognizance.

54. Thereafter, plaintiff voluntarily testified for two days before a Grand Jury about what occurred leading to his arrest, the Grand Jury credited his testimony, the Grand Jury found that there was not probable cause to prosecute plaintiff and returned No True Bill on July 26, 2018.

55. All criminal charges brought against plaintiff were dismissed and sealed in their entirety on or about July 26, 2018.

56. At no point in time did plaintiff commit a crime or violate the law in any manner.

57. The defendant police officers arrested and charged plaintiff with possession of a firearm because they could not locate the individual the firearm belonged to and they

wanted to make a gun arrest because the NYPD values gun arrests highly when evaluating police officers for career advancement.

58. Defendants did not recover any illegal weapons, drugs or contraband from plaintiff's possession, custody or control at any time relevant herein.

59. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers have an objective factual basis to believe he violated the law or committed a crime.

60. At no time was plaintiff in possession of any drugs, weapons, or contraband of any kind, nor did the defendant police officers have an objective reason to believe plaintiff possessed drugs, weapons, or contraband of any kind.

61. The defendant police officers who did not physically touch plaintiff throughout the course of his arrest, but observed their fellow police officers violate plaintiff's rights under the Constitution of the United States and New York State Law and failed to take action to prevent their fellow officers from violating and/or continuing to violate the rights of plaintiff are liable to plaintiff for their failure to intervene.

62. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, strip search, abuse of process, and denial of the right to due process/ right to a fair trial to plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

63. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully entered plaintiff's apartment, unlawfully searched plaintiff's apartment, unlawfully questioned, frisked, seized, unlawfully searched, unlawfully strip searched, falsely arrested, falsely imprisoned, maliciously prosecuted, maliciously abused process, and denied plaintiff the right to due process/ right to a fair trial, without probable cause and in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

66. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

72. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

74. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

79. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

81. Defendants lacked probable cause to search plaintiff.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

86. Plaintiff repeats and realleges paragraphs 1 through 85 as if fully set forth herein.

87. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

88. Defendants commenced and continued a criminal proceeding against plaintiff.

89. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

90. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

91. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

94. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 93 with the same force and effect as if fully set forth herein.

95. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

96. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

97. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

98. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

99. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

102. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 101 with the same force and effect as if fully set forth herein.

103. Defendants issued legal process to place plaintiff under arrest.

104. Defendants arrested plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.

105. Defendants acted with intent to do harm to plaintiff, without excuse or justification.

106. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Failure to Intervene

109. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

111. Defendants failed to intervene to prevent the unlawful conduct described herein.

112. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

115. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 114 with the same force and effect as if more fully set forth at length herein.

116. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligence

117. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 116 with the same force and effect as if more fully set forth at length herein.

118. Defendants owed a duty of care to plaintiff.

119. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, and maliciously prosecuting plaintiff.

120. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

121. All of the foregoing occurred without any fault or provocation by plaintiff.

122. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

123. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 122 with the same force and effect as if more fully set forth at length herein.

124. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

125. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

126. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

127. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

128. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

129. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 128 with the same force and effect as if more fully set forth at length herein

130. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

131. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

132. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

133. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

134. As a result of the foregoing, plaintiff, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

135. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

136. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

137. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Delor Scarboro demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable costs attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 17, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 17, 2019

_____/s/
DAVID M. HAZAN